

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 763

Introduced by Holdcroft, 36.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Treatment and Corrections Act;
- 2 to amend section 83-196, Reissue Revised Statutes of Nebraska; to
- 3 provide an exemption from the Open Meetings Act for certain
- 4 gatherings of members of the Board of Parole; to provide duties for
- 5 the board; and to repeal the original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 83-196, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 83-196 (1) Three members of the Board of Parole shall constitute a
4 quorum for the purpose of transacting any official business. The
5 decisions of the Board of Parole shall be by majority vote. The board
6 shall keep a record of its acts and shall notify the Director of
7 Correctional Services of its decisions relating to offenders who are or
8 have been committed.

9 (2)(a) A gathering of three or more of the members of the Board of
10 Parole shall not constitute a meeting subject to the Open Meetings Act
11 when the purpose of such gathering is limited to:

12 (i) Strategic planning related to the board's operations or
13 communications or interagency coordination;

14 (ii) Process improvement or business procedure development,
15 including workflow, documentation, or data systems;

16 (iii) Internal education, training, or information sharing designed
17 to improve member understanding of parole laws, policies, or best
18 practices; or

19 (iv) Discussion of administrative or procedural matters that do not
20 involve deliberation, recommendation, or decision regarding the grant,
21 denial, deferral, or revocation of parole for any specific individual.

22 (b) No action shall be taken at a gathering described in this
23 subsection to make or influence decisions on specific parole cases. All
24 formal decisions regarding parole shall occur only during duly convened
25 public meetings that are held in compliance with the Open Meetings Act.

26 (c) In order to ensure continued transparency and compliance with
27 the Open Meetings Act, the Board of Parole shall create and maintain a
28 brief public record of each gathering under this subsection. Such record
29 shall include, at a minimum, the date of the gathering, general topics
30 discussed, and the participants. Such record shall be made available to
31 any person upon request.

1 **Sec. 2.** Original section 83-196, Reissue Revised Statutes of
2 Nebraska, is repealed.